

Krishna Kumar Srivastava v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 22 February 2021 · Writ-C No. 5436 of 2021 · WRIT - C No. - 5436 of 2021 · **Writ disposed; liberty to represent to Executive Engineer for speaking order on Clauses 8.1(iii) and 8.2(vii).**

HEADNOTE

Without entering the merits of a theft-assessment and compounding challenge, the Division Bench disposed of the writ with liberty to represent to the Executive Engineer, who was directed to pass a reasoned speaking order considering the mandate of Clause 8.1(iii) and Clause 8.2(vii) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Krishna Kumar Srivastava petitioned the Allahabad High Court to quash a provisional assessment dated 23 October 2020 and a final assessment and demand dated 30 December 2020 issued by the Executive Engineer, Vidyut Vitran Khand-1st, Fatehpur (PuVVNL), and to restrain coercive recovery. He alleged theft assessment under Clauses 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005 without the Clause 8.1(b)(iii) provisional bill and show-cause, and without a hearing on his Section 152 compounding application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)(iii)

theft assessment and compounding demand — representation without merits

HOLDING

Without entering the merits of the challenge to the provisional and final theft-assessment bills and the compounding/assessment demand, the writ was disposed of with liberty to make a fresh representation to the Executive Engineer. If approached within three weeks with a copy of the order, the Executive Engineer shall pass a reasoned speaking order in accordance with law, considering the mandate of Clause 8.1(iii) and Clause 8.2(vii) of the U.P. Electricity Supply Code, 2005, within four weeks. ¶ 1

FLAG Operative direction cites "Clause 8.1(iii)"; the petition invoked Clause 8.1(b)(iii) (provisional assessment bill and show-cause). The Court did not resolve the numbering.

PRINCIPLE TAGS

clause-8.1b-theft-notice-natural-justice On a plea that the Clause 8.1(b)(iii) provisional assessment bill and show-cause were not served, and that no hearing was given on a Section 152 compounding application, the Court did not decide the notice/hearing issue but directed the Executive Engineer to consider the mandate of Clause 8.1(iii) and Clause 8.2(vii) on a fresh representation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT BILL AND CLAUSE 8.1(B)(III) SHOW-CAUSE WERE SERVED, WHETHER A HEARING WAS GIVEN ON THE SECTION 152 COMPOUNDING APPLICATION, AND THE VALIDITY OF THE 30 DECEMBER 2020 FINAL ASSESSMENT AND COMPOUNDING DEMAND.

The Court expressly declined to enter the merits of the petitioner's claim. ¶ 1

